



Article 2. Districts

Summary: this Chapter establishes the zoning districts for the City of Lafayette, the regulations that apply to each district, and a comprehensive list of uses (the “Use Table”).

⇔ *Technical standards such as how building height and setbacks are measured, how buildings relate to utility easements, development in required setbacks, and development on substandard rights of way, are addressed in **Article 3**.*

89-6 Generally

- (a) To promote the public health, safety, morals, and general welfare of the community, the City of Lafayette is divided into the following districts:

District	Cross-Reference	PlanLafayette Future Land Use
“A” Agricultural	89-8	Rural / Agriculture. ⇔ <i>Buffer and building design requirements of Article 4 apply if the area is not zoned.</i>
“RS-1” and “RS-2” Residential Single-Family	89-9	Residential
“RM-1” and “RM-2” Residential Mixed	89-10	Mixed Residential
“MN-1,” “MN-2” and “MN-3” Mixed-Use Neighborhood	89-11	Transitional Mixed-Use
“MX-1” and “MX-2” Mixed-Use Center	89-12	Mixed-Use Center
“D” Downtown	89-13	Mixed-Use Center
“CM-1” and “CM-2” Commercial Mixed	89-14	Commercial / Office
“CH” Commercial Heavy	89-15	Commercial / Office
“IL” Industrial Light	89-16	Office / Industrial
“IH” Industrial Heavy	89-17	Office / Industrial
“PD” Planned Development	89-18	Any of the above
“PI-L” and “PI-H” Public/Institutional	89-19	Any of the above & Public Park

- (1) The RS, RM, MN and CM districts each have subdistricts (*e.g.*, RS-1, RS-2). The uses allowed in a district are consistent across subdistricts, whereas dimensional and development standards differ.
- (2) The MN, CM and CH districts include alternative development types, labeled “A” and “B.” **Development Type “A”** provides for urban-type development, with reduced landscaping and parking requirements but increased frontage buildout requirements. **Development Type “B”** provides for more conventional, suburban-type development, with greater parking, landscaping and green infrastructure requirements to accommodate vehicular access and to mitigate the impacts of paved surfaces and buildings. The



following criteria determine whether an application is required to use Development Type “A” or “B”:

Parking <i>(on-street on adjoining streets that provide direct access to the property)</i>	Any street includes on-street parking or has the capacity for on-street parking.
Speed limit <i>(adjoining streets that provide direct access to the property)</i>	≤ 35 mph
Street Classification <i>(adjoining streets that provide direct access to the property)</i>	All streets are classified as minor arterials or collectors, or are local streets.
Mix of Uses¹	There is at least one Residential, Commercial/Mixed-Use, and Public/Civic/Institutional use within a quarter mile of the property. These uses are those classified by the use table within the labeled Use Category (§Table 89-21-1).
Density²	There are residential uses other than dwelling, single-family detached within a quarter mile of the property.

¹When determining “Mix of Uses,” a quarter-mile is measured as the distance a person walks or drives from the nearest point of the subject property line to the nearest point of the second property line.

²When determining “Density,” a quarter-mile is measured as the radius from the centroid of the subject property.

Sites that meet all five (5) of the criteria above shall be required to use development type “A” unless otherwise determined by the Board of Zoning Adjustment. Sites that do not meet all five (5) of the criteria above may use either Development Type “A” or Development Type “B.”

- (b) Notwithstanding any setback established by this Article, buildings adjacent to substandard streets may be subject to additional setbacks (see Article 3, §89-38).
- (c) Private Roads and Driveways. A Private Road or driveway shall be accessory to the principal use of the parcel or lot upon which the same is located. Where a Private Road or driveway is the principal use of a parcel or lot, the use of such Private Road or driveway shall be concordant with the zoning district of the property upon which the Private Road or driveway is located. Accordingly, a Private Road or driveway located on property zoned RS shall not be trafficked except for traffic accessory to uses permitted in the RS district. Notwithstanding the forgoing, traffic, accessory to uses permitted in the RS district, shall be permitted on Private Roads and driveways located within the RM district; traffic, accessory to uses permitted in the RS and RM districts, shall be permitted on Private Roads and driveways located within MN, CM and CH;



and traffic, accessory to uses permitted in CH and PI districts, shall be permitted on Private Roads and driveways located with IL and IH districts.

89-7 Zoning Map

- (a) The boundaries of the zoning districts are shown on a separate instrument referred to as the zoning map of the Lafayette Consolidated Government (LCG). The Official Zoning Map is maintained as an electronic map layer by the LCG Geographic Information Systems (GIS) application maintained by Development and Planning Department (“DPD”). The official copy of the electronic version of the Official Zoning Map shall be recorded onto permanent media to ensure the electronic information is protected.
- (b) The map, together with all of its notations, references, and other information, is a part of this Chapter and has the same force and effect as if fully set forth or described in the text.

89-8 “A” Agricultural

Purpose: the “A” Agricultural district implements the Rural/ Agriculture future land use category of PlanLafayette by creating a district for land that is principally agricultural or natural in character. The area has low residential densities, and commercial areas are small in scale and either buffered from residential uses or integrated with a conservation design development. This district is applied on a voluntary basis at the request of a property owner, or as part of an area plan. Property owners have the option to build on a lot by lot basis, or to use a conservation subdivision option. Unzoned unincorporated areas that are not subject to the “A” district are subject to the landscaping, buffering and screening standards in Article 3.



- (a) **Permitted Uses.** See § 89-21.

- (b) **Dimensional Standards**

		Option 1	Option 2
	Lot Requirements		
1	Lot size (<i>min</i>)	20 acres	n/a
2	Lot coverage (<i>max</i>)	2%	n/a
3	Lot frontage (<i>min</i>)	100'	50'



Setbacks (principal buildings)			
4	Front / corner street	30'	20'
5	Side	10'	5'
6	Rear	40'	20'

Bulk Plane (⇔ See 89-27)	
7	From RS district boundary

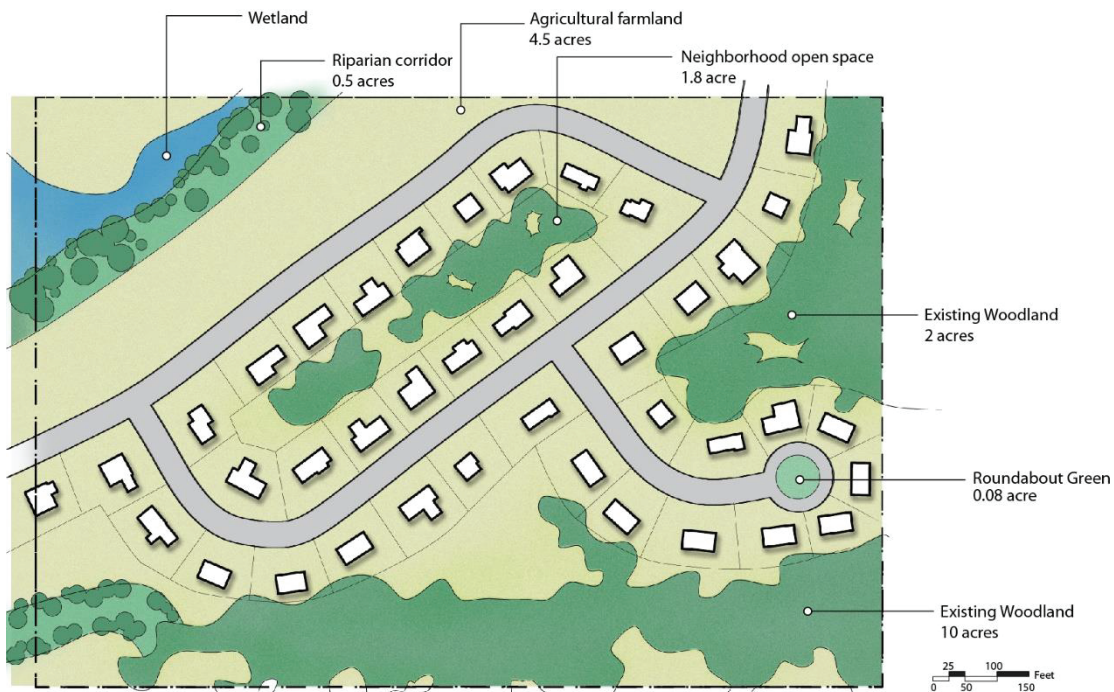
3 stories for the first 200' from the front, side or rear setback line or boundary of a conservation development (see subsection (c)). This requirement does not apply beyond 200' from the setback or development boundary line.

Notes:

- (1) **Option 1** refers to development on an individual lot, except as provided below. **Option 2** refers to conservation design.
- (2) Lot size, coverage and frontage do not apply to Public/Civic/Institutional uses.

(c) Conservation Design

Purpose: a conservation subdivision is a development option that preserves agricultural land, natural resources, and rural character. The standards provide for low development impacts, while providing design flexibility and eliminating standards that would require unnecessary consumption of land. The site characteristics conserve important site features such as open space networks and contiguous woodland habitats adjacent to other existing open space tracts. The site design should encourage connectivity between environmental characteristics of adjacent properties and provide a continuous open space network between the proposed development layout and the adjacent properties. Intermodal trails which provide a link to adjacent properties as an enhancement of recreational opportunities are encouraged. Because the development standards are flexible, development costs per lot are significantly lower than conventional options, and lot yield is typically higher. Conservation street designs are provided in Article 3 of this Chapter.





(1) Lot Yield. The number of lots that may be developed under a Conservation Design approach are based on –

- a. A maximum density of **1 dwelling unit per 5 acres**. To maintain design flexibility and to maximize open space and rural character, minimum lot size requirements do not apply, and
- b. The conservation areas provided (see subsection (2), below).

(2) Conservation Areas

- a. **Amount.** As a baseline, at least **60%** of the site shall be preserved as conservation areas. This percentage establishes a baseline requirement that is adjusted based on the quality and value of the conservation space, based on conservation units (see below).

1. Determine the number of conservation units within the conservation areas as follows:

Type of Conservation Area <i>(defined in Article 3)</i>	Conservation Units
Woodland	1.15
Floodplain or Wetland (not within a riparian corridor)	1.0
Agriculture land	1.0
Riparian Corridor	1.25
Other	0.9
Areas of up to 5 acres that are not part of contiguous conservation areas	0.65

2. Determine the **conserved portion of the development** as follows:

$$C = S * (0.6 \times U), \text{ where}$$

C = conserved portion of the development

S = site area (prior to subdivision)

U = conservation units

- b. **Excluded Areas.** The following areas do not qualify as conservation units:

1. Stormwater detention areas or artificial water bodies;
2. Septic recovery areas, except as provided in subsection 89-8(c)(2)(d); or
3. Lawns or planted areas located on private lots.

- c. **Agricultural Land.**

1. Farm structures shall be retained whenever possible.
2. The subdivision or development layout shall retain existing farm operations within the conservation area.

- d. **Stormwater Management and Septic Areas.**

1. Septic recovery areas and stormwater management facilities may be counted as part of a conservation area if –



- A. The area is maintained by the homeowners' association; and
- B. The applicant demonstrates, by a report submitted by a registered professional engineer, that:
 - i. there is no adverse impact to the character of that area of land, such as –
 - ii. increased runoff, or
 - iii. impairment of water quality, or
 - iv. a decrease in existing tree cover, and
 - v. the developed area of the site is inadequate to accommodate these facilities.
- 2. Dry ponds with associated steep slopes, dams, mowed areas, fencing or unsightly overflow structures do not count toward the required conservation area.
- 3. Farm ponds, bioretention ponds, naturally contoured ponds and wet ponds with wetland edges and no visible structures may count as part of a conservation area.
- 4. Septic recovery areas may count as part of a conservation area if -
 - A. They are maintained by the homeowners' association, and
 - B. designed so that they are visually integrated with the existing landscape.

Examples:



Bioretention area included in common open space (counts toward conservation area)



Typical dry pond (does not count toward conservation area)

(3) Preservation of Conservation Areas. See § 89-40(e).

(4) Continuity of Conservation Areas.

- a. Fragmentation of the conservation area into small, irregularly shaped conservation parcels and lots is prohibited.
- b. Naturally contiguous conservation areas shall not be divided for the sole purposes of obtaining allowable density.
- c. Conservation areas shall connect with existing and potential conservation areas on abutting sites to encourage corridors of compatible site characteristics, unless it is found to be impractical due to topography, spacing or existing natural barriers.



89-9 “RS” Residential Single-Family

Purpose: the “RS” districts implement the Residential future land use category of PlanLafayette by providing for predominantly detached, single family neighborhoods. The dimensional standards accommodate a variety of densities and lot sizes.



(a) **Permitted Uses.** See §89-21.

(b) **Dimensional Standards**

Lot Requirements		RS-1	RS-2
1	Lot size (<i>min</i>)	6,000 sf	4,000 sf
2	Open space (<i>min</i>)	20%	15%
3	Lot Frontage (<i>min</i>)	30'	n/a
Setbacks (<i>principal buildings</i>)			
4	Front street (<i>min</i>)*	20'	5'
5	Side (<i>min</i>)	5'	3'
6	Rear (<i>min, common lot line</i>)	10'	10'
7	Rear-alley (<i>min</i>)	3'	3'
Bulk Plane (↔ See 89-27)			
8	From RS district boundary or another RS zoned lot or parcel	3 stories for the first 50' from the front, side or rear lot line, then 1 additional story for each additional 50 feet from the setback line. This requirement does not apply beyond 200' from any lot line.	

↔ Refer to Article 3 for rules and measurement of building height, lots, and setbacks.

* For corner lots, see §89-38(c)(6)(g)

- (1) Required front, side, and rear setbacks must be planted in grass or other planting except for required ingress and egress.
- (2) For buildings adjacent to substandard streets, an additional setback may apply (see Article 3, § 89-38).
- (3) Non-residential uses in the RS district are subject to the same standards as residential uses, except as provided in Article 5.
- (4) For any subdivision of 3 or more lots zoned RS-2 with lot widths less than 40 feet, an alley will be required and access must be provided by that alley. Lot widths greater than or equal to 40 feet can be serviced by alleys and/or driveways. Notwithstanding the foregoing, in the discretion of the Administrator, the use of driveways is permissible as an alternate to the alley requirement where feasible and aesthetically appropriate.
- (5) For wedge-shaped lots or lots fronting on a cul-de-sac, the minimum lot frontage in RS-1 shall be 25'.



89-10 “RM” Residential Mixed

Purpose: the “RM” districts implement the Mixed Residential and Residential future land use categories of PlanLafayette by providing for a wide range of housing types, from single-family detached units to apartments. The dimensional standards accommodate a variety of densities and lot sizes.



(a) **Permitted Uses.** See § 89-21.

(b) **Dimensional Standards**

Lot Requirements		RM-1	RM-2
1	Lot size (<i>min</i>)	n/a	n/a
2	Open space (<i>min</i>)	20%	15%
Setbacks (<i>principal buildings</i>)			
3	Front / corner street (<i>min</i>)	5'	5'
4	Side (<i>min</i>)	n/a	n/a
5	Rear (<i>min-common lot line</i>)	10'	10'
6	Rear-alley (<i>min</i>)	3'	3'
Bulk Plane (↔ See 89-27)			
7	From RS district boundary	3 stories for the first 50' from the front, side or rear lot line, then 1 additional story for each additional 50 feet from the setback line. This requirement does not apply beyond 200' from any lot line bordering the RS district.	

(1) Maximum Density for attached or zero lot line (dwelling units per gross acre) is as follows:

District	Density (max)
RM-1	25
RM-2	42

(2) Notwithstanding that there is no minimum lot size in the RM zoning district, a detached Single-Family Residence in the RM-1 zoning district shall be subject to a minimum lot size of 4,500 square feet, and a detached Single-Family Residence in the RM-2 zoning district shall be subject to the same minimum lot size and alley requirements as the RS-2 zoning district.

(3) Building entrances shall face the street or an interior courtyard, except for interior units that are screened from the street by street facing buildings. The rear of buildings shall not face the street.



89-11 “MN” Mixed-Use Neighborhood

Purpose: the “MN” district –

- *implements the Transitional Mixed-Use future land use category of PlanLafayette,*
- *provides an opportunity to establish neighborhood retail, convenience, service, office, and institutional uses in the Residential and Mixed Residential categories,*
- *provides a transition between residential areas and more intense commercial corridors, and*
- *provides opportunities for pedestrian access between residential and commercial areas.*

Each district has type “A” (urban) and type “B” (suburban) development types, as described and permitted in § 89-6.



(a) Permitted Uses. See § 89-21.

(b) Dimensional Standards.

		MN-1		MN-2		MN-3	
Development Type		A	B	A	B	A	B
Lot Requirements							
1	Lot size (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
2	Density (<i>max</i>)	17	17	n/a	25	n/a	30
<i>* applies to mixed-use or residential uses only</i>							
3	Open space (<i>min</i>)	n/a	15%	n/a	10%	n/a	15%
Setbacks (<i>principal buildings</i>)							
4	Front / corner street (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
5	Front / corner street (<i>max</i>)	20'	n/a	20'	n/a	15'	65'
6	Frontage buildout (<i>min</i>)	65%	n/a	75%	n/a	90%	65%
7	Side (<i>min</i>)	n/a	n/a	n/a	n/a	n/a	n/a
8	Rear-common property line or alley (<i>min</i>)	5'	5'	5'	5'	5'	5'
Height (↔ See 89-27)							
9	Bulk Plane (<i>from RS boundary</i>)*	n/a	2	n/a	3	n/a	3
10	Building Height (<i>max stories</i>)	3**	n/a**	4	n/a	5	n/a

*The Bulk Plane number above indicates the maximum stories for the first 50' from the front, side or rear lot line, then 1 additional story for each additional 50 feet from the setback line. This requirement does not apply beyond 200' from any lot line bordering the RS district.



**The max Building Height in MN-1 A or B for Apartment Hotels and Multi-family housing types on a lot that abuts an RS zoning district shall be 2 stories.

- (c) Whenever a setback greater than the maximum setback established by this Section is required under § 89-38(e), the setback requirements of § 89-38(e) shall supersede the maximum setback established in this Section. In that case, the setback required under § 89-38(e) shall be the maximum setback.
- (d) In the MN district, no sound shall be amplified outside of the confines of a building.
- (e) Drive-in and drive-through establishments are subject to Article 5, § 89-80.
- (f) For frontages on Minor Arterials, Collectors, or local streets: if the width of the front lot line is one hundred (100') feet or less, the buildout requirement is reduced by ten (10%) percentage points.
- (g) For frontages on Major Arterials: the frontage buildout requirement is reduced to 40% for corner lots.
- (h) For a single-family detached dwelling, the minimum setbacks shall be subject to the same minimum setbacks as the “RM” Residential-Mixed zoning district.
- (i) Corner lot developments will use highest classified road, as determined by LCG, when determining frontage buildout and setback requirements.
- (j) A detached Single-Family Residence in the MN zoning district shall be subject to a minimum lot size of 3,000 square feet.



89-12 “MX” Mixed-Use Center

Purpose: the “MX” districts implement the Mixed-Use Center future land use category of PlanLafayette for centers outside of Downtown. This includes a wide range of commercial, institutional and residential uses, and development design and intensity that supports walkable streets and transit. MX districts are part of approved mixed-use centers (MUCs) (see § 89-28). The MX district is divided into subdistricts based upon the development context, and the location of a lot on an “A” or “B” Street.

- ⇔ See Article 3, § 89-28 (Mixed-Use Center Design Standards) for processes and standards for designating mixed-use centers and master plan elements such as MX subdistricts and “A” and “B” streets.
- ⇔ See Article 3, § 89-29 (Mixed-Use Building Standards) for building design standards that are referenced in this section. These include minimum buildout, entryways, façade design, and architectural features.

(a) **Permitted Uses.** See § 89-21.

(b) Dimensional Standards

- (1) **Generally.** This section establishes dimensional standards for each MX district. These standards are keyed to the standards defined in § 89 – 28 Article 3, § 89-29. For development that is subject to a Master Site Plan and a development agreement, the LCG may designate the applicable dimensional standards in the development agreement.
- (2) **MX-1.** MX-1 provides a high level of density, intensity and design to reflect the more urban character of Mixed-Use Centers in the LCG’s established neighborhoods.

Setbacks (principal buildings)		
1	Front / corner street (min)	n/a
2	Front / corner street (max)	15’
3	Frontage buildout (min)	90%
4	Side (min)	n/a
5	Rear-alley or common lot line (min)	n/a
Bulk Plane (⇔ See 89-27)		
6	From RS district boundary	3 stories for the first 12’ from the front or rear setback line, then 1 additional story for each additional 12 feet from the setback line. This requirement does not apply beyond 60’ from the setback line.

- (3) **MX-2.** MX-2 provides an opportunity for mixed-use development in the edges of the City, or for projects that annex to the City, at a lower scale and intensity than MX-1.

Setbacks (principal buildings)		
1	Front / corner street (min)	n/a
2	Front / corner street (max)	25’
3	Frontage buildout (min)	70%
4	Side (min)	n/a
5	Rear-alley or common lot line (min)	n/a



Bulk Plane (↔ See 89-27)

- | | | |
|---|---------------------------|--|
| 6 | From RS district boundary | 3 stories for the first 20' from the front or rear setback line, then 1 additional story for each additional 20 feet from the setback line. This requirement does not apply beyond 100' from the setback line. |
|---|---------------------------|--|